

The Jamia Millia Islamia Act, 1988

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[Union of India - Act](#)

[The Jamia Millia Islamia Act, 1988](#)

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[The Jamia Millia Islamia Act, 1988](#)

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An Act to establish and incorporate a teaching University in the Union territory of Delhi and to provide for matters connected therewith or incidental thereto.

WHEREAS it is expedient to establish and incorporate a teaching University at New Delhi, to dissolve the "Jamia Millia Islamia Society, Delhi", a society registered under the Societies Registration Act, 1860 (21 of 1860) and to transfer to and vest in the said University all properties and rights of the said Society;

BE it enacted by Parliament in the Thirty-ninth Year of the Republic of India as follows:-

1.

Short title and commencement.-

(1)

This Act may be called the Jamia Millia Islamia Act, 1988.

(2)

It shall come into force on such date¹ as the Central Government may, by notification in the Official Gazette, appoint.

2.

Definitions.-

In this Act, and in all Statutes made hereunder, unless the context otherwise requires,-

(a)

"academic staff" means such categories of staff as are designated as academic staff by the Ordinances;

(b)

"Amir-i-Jamia (Chancellor)" and "Shaikh-ul-Jamia (Vice-Chancellor)" mean, respectively, the Amir-i-Jamia (Chancellor) and Shaikh-ul-Jamia (Vice-Chancellor) of the University;

(c)

"Anjuman (Court)" means the Anjuman (Court) of the University;

(d)

"Board of Studies" means the Board of Studies of the University;

(e)

"Department" means a Department of Studies, and includes a Centre of Studies and Research;

(f)

"employee" means any person appointed by the University, and includes teachers and other staff of the University;

(g)

"Faculty" means a Faculty of the University;

(h)

"Hall" means a unit of residence or of corporate life for the students of the University;

(i)

"Institution" means an Academic Institution, established or maintained by the University;

(j)

"Majlis-i-Muntazimah (Executive Council)" means the Majlis-i-Muntazimah (Executive Council) of the University;

(k)

"Majlis-i-Talimi (Academic Council)" means the Majlis-i-Talimi (Academic Council) of the University;

(l)

"Principal" means the head of an Institution, School or Polytechnic and includes where there is on Principal, the person for the time being duly appointed to act as Principal, and, in the absence of the Principal or acting Principal, a Vice-Principal duly appointed as such;

(m)

"Statutes", "Ordinances" and "Regulations" mean, respectively, the Statutes, Ordinances and Regulations of the University for the time being in force;

(n)

"teachers of the University" means Professors, Readers, Lecturers and such other persons as may be appointed for imparting instruction or conducting research in the University and are designated as teachers by the Ordinances;

(o)

"University" means the educational institution known as "Jamia Millia Islamia" founded in 1920 during the Khilafat and Non-Co-operation Movements in response to Gandhiji's call for a boycott of all Government-sponsored educational institutions which was subsequently registered in 1939 as Jamia Millia Islamia Society, and declared in 1962 as an institution deemed to be a

University under section 3 of the University Grants Commission Act, 1956 (3 of 1956), and which is incorporated as a University under this Act.

3.

The University.-

(1)

There shall be established a University by the name of the Jamia Millia Islamia.

(2)

The headquarters of the University shall be at New Delhi.

(3)

The persons holding office as Amir-i-Jamia (Chancellor) and Shaikh-ul-Jamia (Vice-Chancellor) and the members of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council) and the Majlis-i-Talimi (Academic Council) of the University, for the time being, shall be a body corporate by the name of the Jamia, Millia Islamia and shall have perpetual succession and a common seal and shall sue and be sued by that name.

4.

Dissolution of the Jamia Millia Islamia Society and transfer of all property to the University.-

On and from the commencement of this Act,-

(i)

the Society known as the Jamia Millia Islamia Society, Delhi, shall be dissolved, and all property, movable or immovable, and all rights, powers and privileges of the said Society shall be transferred to and vest in the University and shall be applied to the objects and purposes for which the University is established;

(ii)

all debts, liabilities and obligations of the said Society shall be transferred to the University and shall thereafter be discharged and satisfied by it;

(iii)

all references in any enactment to the said Society shall be construed as references to the University;

(iv)

any will, deed or other documents, whether made or executed before or after the commencement of this Act, which contains any bequest, gift or trust in favour of the said Society shall be construed as if the University was therein named instead of the Society;

(v)

subject to any orders which the Majlis-i-Muntazimah (Executive Council) may make, the buildings which belonged to the Jamia Millia Islamia, Delhi, shall continue to be known and designated by the names and style as they were known and designated immediately before the commencement of this Act;

(vi)

subject to the provisions of this Act, every person employed immediately before the commencement of this Act in the Jamia Millia Islamia, Delhi, shall hold such employment in the University by the same tenure and on the same terms and conditions and with the same rights and privileges as to pension and gratuity as he would have held under the Jamia Millia Islamia, Delhi, if this Act had not been passed.

5.

Objects of the University.-

The objects of the University shall be to disseminate and advance knowledge by providing instructional, research and extension facilities in such branches of learning as it may deem fit and the University shall endeavour to provide to students and teachers the necessary atmosphere and facilities for the promotion of-

(i)

innovations in education leading to restructuring of courses, new methods of teaching and learning, and integral development of personality;

(ii)

studies in various disciplines;

(iii)

inter-disciplinary students;

(iv)

national integration, secularism and international understanding.

6.

Powers of the University.-

The University shall have the following powers, namely:-

(i)

to provide for instruction in such branches of learning as the University may, from time to time, determine and to make provisions for research and for the advancement and dissemination of knowledge;

(ii)

to promote the study of the religions, philosophy and culture of India;

(iii)

to grant, subject to such conditions as the University may determine, diplomas or certificates to, and confer degrees or other academic distinctions on the basis of examinations, evaluation or any other method of testing, on persons, and to withdraw any such diplomas, certificates, degrees or other academic distinctions for good and sufficient cause;

(iv)

to organise and to undertake extra-mural studies, extension services and other measures for the promotion of adult education;

(v)

to confer honorary degrees or other distinctions in the manner prescribed by the Statutes;

(vi)

to provide, instruction, including correspondence and such other courses, to such persons as are not members of the University, as it may determine;

(vii)

to institute Principalships, Professorships, Readerships, Lecturerships and other teaching or academic posts required by the University and to appoint persons to such Principalships, Professorships, Readerships, Lecturerships or other posts;

(viii)

to create administrative, ministerial and other posts and to make appointments thereto;

(ix)

to appoint persons working in any other University or organisation as teachers of the University for a specified period;

(x)

to co-operate, collaborate or associate with any other University or authority or institution in such manner and for such purposes as the University may determine;

(xi)

to establish and maintain Schools, Institutions and such Centres, Specialised Laboratories or other units for research and instructions as are, in the opinion of the University, necessary for the furtherance of its objects;

(xii)

to institute and award fellowships, scholarships, studentships, medals and prizes;

(xiii)

to establish and maintain Halls for the students of the University;

(xiv)

to make provision for research and advisory services, and for that purpose to enter into such arrangements with other institutions or bodies as the University may deem necessary;

(xv)

to declare a Centre, an Institution, a Department, a School as an autonomous Centre, Institution, Department or school, as the case may be, in accordance with the Statutes;

(xvi)

to determine standards for admission into the University, which may include examination, evaluation or any other method of testing;

(xvii)

to demand and receive payment of fees and other charges;

(xviii)

to supervise the residences of the students of the University and to make arrangements for promoting their health and general welfare;

(xix)

to make special arrangements in respect of woman students as the University may consider desirable;

(xx)

to regulate and enforce discipline among the employees and students of the University and take such disciplinary measures in this regard as may be deemed by the University to be necessary;

(xxi)

to make arrangements for promoting the health and general welfare of the employees of the University;

(xxii)

to receive donations and to acquire, hold, manage and dispose of any property, movable or immovable, including trust and endowment properties for the purposes of the University;

(xxiii)

to borrow, with the approval of the Central Government, on the security of the property of the University, money for the purposes of the University;

(xxiv)

to do all such other acts and things as may be necessary, incidental or conducive to the attainment of all or any of the objects of the University.

7.

University open to all classes, castes and creed.-

The University shall be open to persons of either sex and of whatever race, creed, caste or class, and it shall not be lawful for the University to adopt or impose on any person any test whatsoever of religious belief or profession in order to entitle him to be admitted therein as a teacher or student, or to hold any office therein or to graduate thereat:

Provided that nothing in this section shall be deemed to prevent the University from making appropriate provisions for reservation for the Scheduled Castes, the Scheduled Tribes, the physically handicapped persons and women.

8.

The Visitor.-

(1)

The President of India shall be the Visitor of the University.

(2)

The Visitor shall have the right to cause an inspection to be made by such person or persons as he may direct, of the University, its buildings, laboratories and equipment, and of any Centre, Department, Institution or School maintained by the University and also of the examinations, teaching and other work conducted or done by the University and to cause an inquiry to be made in like manner in respect of any matter connected with the administration or finances of the University, Centre, Department, Institution or School.

(3)

The Visitor shall, in every case, given notice to the University of his intention to cause an inspection or inquiry to be made, and the University shall, on receipt of such notice, have the right to make, within thirty days from the date of receipt of the notice or such other period as the Visitor may determine, such representations to the Visitor, as it may consider necessary.

(4)

After considering the representations, if any, made by the University, the Visitor may cause to be made such inspection or inquiry as is referred to in sub-section (2).

(5)

Where any inspection or inquiry has been caused to be made by the Visitor, the University shall be entitled to appoint a representative who shall have the right to present and be heard at such inspection or inquiry.

(6)

The Visitor may, if the inspection or inquiry is made in respect of the University or any Centre, Department, Institution or School maintained by it, address the Shaikh-ul-Jamia (Vice-Chancellor) with reference to the result of such inspection or inquiry, and the Shaikh-ul-Jamia (Vice-Chancellor) shall communicate to the Majlis-i-Muntazimah (Executive Council) the views of the Visitor with such advice as the Visitor may offer upon the action to be taken thereon.

(7)

Where the Majlis-i-Muntazimah (Executive Council) does not, within a reasonable time, take action to the satisfaction of the Visitor, the Visitor, may, after considering any explanation furnished or representation made by the Majlis-i-Muntazimah (Executive Council) issue such directions as he may think fit and the Majlis-i-Muntazimah (Executive Council), shall comply with such directions.

(8)

Without prejudice to the foregoing provisions of this section, the Visitor may, by order in writing, annul any proceeding of the University which is not in conformity with this Act, the Statutes or the Ordinances:

Provided that before making any such order, he shall call upon the University to show cause why such an order should not be made, and, if any cause is shown within a reasonable time, he shall consider the same.

(9)

The Visitor shall have such other powers as may be prescribed by the Statutes.

9.

Officers of the University.-

The following shall be the officers of the University:-

(i)

the Amir-i-Jamia (Chancellor);

(ii)

the Shaikh-ul-Jamia (Vice-Chancellor);

(iii)

the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor);

(iv)

the Musajjil (Registrar);

(v)

the Deans of Faculties;

(vi)

the Dean of Students' Welfare;

(vii)

the Finance Officer; and

(viii)

such other officers as may be declared by the Statutes to be officers of the University.

10.

The Amir-i-Jamia (Chancellor).-

(1)

The Amir-i-Jamia (Chancellor) shall be elected by the Anjuman (Court) in such manner as may be prescribed by the Statutes.

(2)

The Amir-i-Jamia (Chancellor) shall, by virtue of his office, be the Head of the University.

(3)

The Amir-i-Jamia (Chancellor) shall, if present, preside at the Convocation of the University held for conferring degrees.

11.

The Shaikh-ul-Jamia (Vice-Chancellor).-

(1)

The Shaikh-ul-Jamia (Vice-Chancellor) shall be appointed by the Visitor in such manner as may be prescribed by the Statutes.

(2)

The Shaikh-ul-Jamia (Vice-Chancellor) shall be the principal executive and academic officer of the University, and shall exercise general supervision and control over the affairs of the University and give effect to the decision of all the authorities of the University.

(3)

The Shaikh-ul-Jamia (Vice-Chancellor) may, if he is of opinion that immediate action is necessary on any matter, exercise any power conferred on any authority of the University by or under this Act and shall report to such authority the action taken by him on such matter:

Provided that if the authority concerned is of opinion that such action ought not to have been taken, it may refer the matter to the Visitor whose decision thereon shall be final:

Provided further that any person in the service of the University who is aggrieved by the action taken by the Shaikh-ul-Jamia (Vice-Chancellor) under this sub-section shall have the right to appeal against such action to the Majlis-i-Muntazimah (Executive Council) within three months from the date on which decision on such action is communicated to him, and thereupon the Majlis-i-Muntazimah (Executive Council) may confirm, modify or reverse the action taken by the Shaikh-ul-Jamia (Vice-Chancellor).

(4)

The Shaikh-ul-Jamia (Vice-Chancellor) shall exercise such other powers and perform such other functions as may be prescribed by the Statutes or Ordinances.

12.

The Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor).-

The Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall be appointed in such manner, and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

13.

The Musajjil (Registrar).-

(1)

The Musajjil (Registrar) shall be appointed in such manner as may be prescribed by the Statutes.

(2)

The Musajjil (Registrar) shall have the power to enter into agreements, sign documents and authenticate records on behalf of the University and shall exercise such other powers and perform such other duties as may be prescribed by the Statutes.

14.

Deans of Faculties.-

Every Dean of a Faculty shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

15.

The Finance Officer.-

The Finance Officer shall be appointed in such manner and shall exercise such powers and perform such duties as may be prescribed by the Statutes.

16.

Other officers.-

The manner of appointment and powers and duties of other officers of the University shall be prescribed by the Statutes.

17.

Authorities of the University.-

The following shall be the authorities of the University:-

(i)

the Anjuman (Court);

(ii)

the Majlis-i-Muntazimah (Executive Council);

(iii)

the Majlis-i-Talimi (Academic Council);

(iv)

the Majlis-i-Maliyat (Finance Committee);

(v)

the Faculties;

(vi)

the Planning Board; and

(vii)

such other authorities as may be declared by the Statutes to be authorities of the University.

18.

The Anjuman (Court).-

(1)

The constitution of the Anjuman (Court) and the term of office of its members shall be prescribed by the Statutes.

(2)

Subject to the provisions of this Act, the Anjuman (Court) shall have the following powers and functions, namely:-

(a)

to review, from time to time, the broad policies and programmes of the University and to suggest measures for the improvement and development of the University;

(b)
to consider and pass resolutions on the annual report and the annual accounts of the University and the audit report on such accounts;

(c)
to advise the Visitor in respect of any matter which may be referred to it for advice; and

(d)
to perform such other functions as may be prescribed by this Act or Statutes.

19.
The Majlis-i-Muntazimah (Executive Council).-
(1)
The Majlis-i-Muntazimah (Executive Council) shall be the principal executive body of the University.

(2)
The constitution of the Majlis-i-Talim (Academic Council), the term of office of its members and its powers and duties shall be prescribed by the Statutes.

20.
The Majlis-i-Talimi (Academic Council).-

(1)
The Majlis-i-Talimi (Academic Council) shall be the principal academic body of the University and shall, subject to the provisions of this Act, the Statutes and Ordinances co-ordinate and exercise general supervision over the academic policies of the University.

(2)
The constitution of the Majlis-i-Talimi (Academic Council), the term of office of its members and its powers and duties shall be prescribed by the Statutes.

21.
The Planning Board.-

(1)
The Planning Board shall be the principal planning body of the University.

(2)
The constitution of the Planning Board, term of office of its members and its powers and duties shall be prescribed by the Statutes.

22.
Other authorities of the University.-
The constitution, powers and functions of the Faculties and of such other authorities as may be declared by the Statutes to be authorities of the University, shall be prescribed by the Statutes.

23.
Power to make Statutes.-
Subject to the provisions of this Act, the Statutes may provide for all or any of the following matters, namely:-

(a)
the constitution, powers and functions of the authorities and other bodies of the University, as may be constituted from time to time;

(b)
the election and continuance in office of the members of the said authorities, filling of vacancies of members, and all other matters relating to those authorities for which it may be necessary or desirable to provide;

(c)
the appointment, powers and duties of the officers of the University and their emoluments;

(d)
the appointment of teachers of the University and other academic staff and their emoluments;

(e)
the appointment of teachers and other academic staff working in any other University or Institution for a specific period for undertaking a joint project; 8

(f)

the conditions of service of employees including provision for pension, insurance and provident fund, the manner of termination of service and disciplinary actions;

(g)

the principles governing seniority of service of employees;

(h)

the procedure for arbitration in case of disputes between employees or students and the University;

(i)

the procedure for appeal to the Majlis-i-Muntazimah (Executive Council) by any employee or student against the action of any officer or authority of the University;

(j)

the establishment and recognition of the students' union or association of teachers, academic staff or other employees;

(k)

the participation of the students in the affairs of the University;

(l)

the conferment of honorary degrees;

(m)

the withdrawal of degrees, diplomas, certificates and other academic distinctions;

(n)

the institutions of fellowships, scholarships, studentships, medals and prizes;

(o)

the maintenance of discipline among the students;

(p)

the establishment and abolition of Faculties, Departments, Centres and Schools;

(q)

the delegation of powers vested in the authorities or officers of the University; and

(r)

all other matters which by this Act are to be, or may be, prescribed by the Statutes.

24.

Statutes how to be made.-

(1)

The first Statutes are those set out in the Schedule.

(2)

The Majlis-i-Muntazimah (Executive Council) may, from time to time, make new or additional Statutes referred to in sub-section (1):

Provided that the Majlis-i-Muntazimah (Executive Council), shall not make, amend or repeal any Statute affecting the status, powers or constitution of any authority of the University until such authority has been given an opportunity of expressing an opinion in writing on the proposed changes, and any opinion so expressed shall be considered by Majlis-i-Muntazimah (Executive Council).

(3)

Every new Statute or addition to the Statutes or any amendment or repeal of a Statute shall require the assent of the Visitor who may assent thereto or withhold assent or remit to the Majlis-i-Muntazimah (Executive Council) for consideration.

(4)

A new Statute or a Statute amending or repealing an existing Statute shall have no validity unless it has been assented to by the Visitor.

(5)

Notwithstanding anything contained in the foregoing sub-sections, the Visitor may make new or additional Statutes or amend or repeal the Statutes referred to in sub-section (1) during the period of three years immediately after the commencement of this Act.

(6)

Notwithstanding anything contained in the foregoing sub-sections, the Visitor may direct the University to make

provisions in the Statutes in respect of any matter specified by him and if the Majlis-i-Muntazimah (Executive Council) is unable to implement such a direction within sixty days of its receipt, the Visitor may, after considering the reasons, if any, communicated by the Majlis-i-Muntazimah (Executive Council) for its inability to comply with such direction make or amend the Statutes suitably.

25.

Power to make Ordinances.-

(1)

Subject to the provisions of this Act and the Statutes, the Ordinances may provide for all or any of the following matters, namely:-

(a)

the admission of students to the University and their enrolment as such;

(b)

the courses of study to be laid down for all degrees, diplomas and certificates of the University;

(c)

the medium of instruction and examination;

(d)

the award of degrees, diplomas, certificates and other academic distinctions, the qualifications for the same and the means to be taken relating to the granting and obtaining of the same;

(e)

the fees to be charged for courses of study in the University and for admission to the examinations, degrees, diplomas and certificates of the University;

(f)

the conditions for the award of fellowships, scholarships, studentships, medals and prizes;

(g)

the conduct of examinations, including the term of office and manner of appointment and the duties of examining bodies, examiners and moderators;

(h)

the conditions of residence of the students of the University;

(i)

the special arrangements, if any, which may be made for the residence, discipline and teaching of women students and the prescribing of special courses of studies for them;

(j)

the appointment and emoluments of employees other than those for whom provision has been made in the Statutes;

(k)

the establishment of Centres of Studies, Boards of Studies, Inter-disciplinary Studies, Special Centres, Specialised Laboratories and other Committees;

(l)

the manner of co-operation and collaboration with other Universities and authorities including learned bodies or associations;

(m)

the creation, composition and functions of any other body which is considered necessary for improving the academic life of the University;

(n)

the remuneration to be paid to the examiners, moderators, invigilators and tabulators;

(o)

such other terms and conditions of service of teachers and other academic staff as are not prescribed by the Statutes;

(p)

the management of institutions established by the University; and

(q)

all other matters which by this Act or the Statutes may be prescribed by the Ordinances.

(2)

The regulations and by-laws in force immediately before the commencement of this Act shall be the first Ordinances of the University and may be repealed or amended at any time by the Majlis-i-Muntazimah (Executive Council).

26.

Power to make Regulations.-

The authorities of the University may make Regulations consistent with this Act, the Statutes and the Ordinances for the conduct of their own business, and that of the Committees appointed by them and not provided for by this Act, the Statutes or the Ordinances in the manner prescribed by the Statutes.

27.

Annual report.-

(1)

The annual report of the University shall be prepared under the direction of the Majlis-i-Muntazimah (Executive Council) and shall be submitted to the Anjuman (Court) on or after such date as may be prescribed by the Statutes and the Anjuman (Court) shall consider the report in its annual meeting.

(2)

The Anjuman (Court) shall submit the annual report to the Visitor along with its comments, if any.

(3)

A copy of the annual report as submitted to the Visitor shall also be submitted to the Central Government, which shall, as soon as may be, cause the same to be laid before both the Houses of Parliament.

28.

Annual accounts.-

(1)

The annual accounts and balance-sheet of the University shall be prepared under the directions of the Majlis-i-Muntazimah (Executive Council) and shall, once at least every year and at intervals of not more than fifteen months, be audited by the Comptroller and Auditor-General of India or by such persons as he may authorise in this behalf.

(2)

A copy of the annual accounts, together with the audit report thereon, shall be submitted to the Anjuman (Court) and the Visitor along with the observations of the Majlis-i-Muntazimah (Executive Council).

(3)

Any observations made by the Visitor on the annual accounts shall be brought to the notice of the Anjuman (Court) and the observations of the Anjuman (Court), if any, shall, after being considered by the Majlis-i-Muntazimah (Executive Council), be submitted to the Visitor.

(4)

A copy of the annual accounts, together with the audit report as submitted to the Visitor, shall also be submitted to the Central Government which shall, as soon as may be, cause the same to be laid before both the Houses of Parliament.

(5)

The audited annual accounts after having been laid before both the Houses of Parliament, shall be published in the Gazette of India.

29.

Conditions of services of employees.-

(1)

Every employee of the University shall be appointed under a written contract, which shall be lodged with the University and a copy of which shall be furnished to the employee concerned.

(2)

Any dispute arising out of a contract between the University and any of the employees shall at the request of the employee, be referred to a Tribunal of Arbitration consisting of one member appointed by the Majlis-i-Muntazimah (Executive Council), one member nominated by the employee concerned and an umpire appointed by the Visitor.

(3)

The decision of the Tribunal of Arbitration referred to in sub-section (2), shall be final, and no suit shall lie in any civil court in respect of the matters decided by the Tribunal.

(4)

Every request made by the employee under sub-section (2), shall be deemed to be a submission to arbitration upon the terms of this section within the meaning of the Arbitration Act, 1940 (10 of 1940).

30.

Procedure of appeal and arbitration in disciplinary cases against students.-

(1)

Any student or candidate for an examination whose name has been removed from the rolls of the University by the orders of resolution of the Shaikh-ul-Jamia (Vice-Chancellor), Discipline Committee or Examination Committee, as the case may be, and who has been debarred from appearing at the examinations of the University for more than one year, may, within ten days of the date of receipt of such orders or copy of such resolution by him, appeal to Majlis-i-Muntazimah (Executive Council) and the Majlis-i-Muntazimah (Executive Council) may confirm, modify or reverse the decision of the Shaikh-ul-Jamia (Vice-Chancellor) or the concerned Committee, as the case may be.

(2)

Any dispute arising out of any disciplinary action taken by the University against a student shall, at the request of such student, be referred to a Tribunal of Arbitration and the provisions of sub-sections (2), (3) and (4) of section 29 shall as far as may be, apply to a reference made under this sub-section.

31.

Right to appeal.-

Every employee or student of the University shall, notwithstanding anything contained in this Act, have a right to appeal within such time as may be prescribed by the Statutes, to the Majlis-i-Muntazimah (Executive Council), against the decision of any officer or authority of the University and thereupon the Majlis-i-Muntazimah (Executive Council) may confirm, modify or reverse the decision appealed against.

32.

Provident and pension funds.-

(1)

The University shall constitute for the benefit of its employees such pension or provident fund or provide such insurance schemes as it may deem fit in such manner and subject to such conditions as may be prescribed by the Statutes.

(2)

Where such provident fund or pension fund has been so constituted, the Central Government may declare that the provisions of the Provident Funds Act, 1925 (19 of 1925), shall apply to such fund as if it were a Government provident fund.

33.

Disputes as to constitution of University authorities and bodies.-

If any question arises as to whether any person has been duly elected or appointed as, or is entitled to be, a member of any authority or other body of the University, the matter shall be referred to the Visitor whose decision thereupon shall be final.

34.

Constitution of Committees.-

Where any authority of the University is given power by this Act or the Statutes to appoint Committees, such Committees shall, save as otherwise provided, consist of the members of the authority concerned and of such other persons (if any) as the authority in each case may think fit.

35.

Filling of casual vacancies.-

All casual vacancies among the members (other than ex officio members) of any authority or other body of the University shall be filled, as soon as conveniently may be, by the person or body who appointed, elected or co-opted the members whose place has become vacant and the person appointed, elected or co-opted to a casual vacancy shall be a member of such authority or body for the residue of the term for which the person whose place he fills would have been a member.

36.

Proceedings of University authorities or bodies not invalidated by vacancies.-

No act or proceedings of any authority or other body of the University shall be invalid merely by reason of the existence of a vacancy or vacancies among its members.

37.

Protection of action taken in good faith.-

No suit or other legal proceedings shall lie against any officer or employee of the University for anything which is in good faith done or intended to be done in pursuance of any of the provisions of this Act, the Statutes or the Ordinances.

38.

Mode of proof of University record.-

A copy of any receipt, application, notice, order, proceeding, resolution of any authority or Committee of the University, or other documents in possession of the University, or any entry in any register duly maintained by the University, if certified by the Musajjil (Registrar), shall be received as prima facie evidence of such receipt, application, notice, order, proceeding or resolution, documents or the existence of entry in the register and shall be admitted as evidence of the matters and transaction therein where the original thereof would, if produced, have been admissible in evidence, notwithstanding anything contained in the Indian Evidence Act, 1872 (1 of 1872) or in any other law for the time being in force.

39.

Statutes, Ordinances and Regulations to be published in the Official Gazette and to be laid before Parliament.-

(1)

Every Statute, Ordinance or Regulation made under this Act, shall be published in the Official Gazette.

(2)

Every Statute, Ordinance or Regulation made under this Act shall be laid as soon as may be after it is made, before each House of Parliament, while it is in session, for a total period of thirty days which may be comprised in one session or in two or more successive sessions, and if, before the expiry of the session immediately following the session or the successive sessions aforesaid, both Houses agree in making any modification in the Statute, Ordinance or Regulation or both Houses agree that the Statute, Ordinance or Regulation should not be made, the Statute, Ordinance or Regulation shall thereafter have effect only in such modified form or be of no effect, as the case may be; so, however, that any such modification or annulment shall be without prejudice to the validity of anything previously done under that Statute, Ordinance or Regulation.

40.

Power to remove difficulties.-

If any difficulty arises in giving effect to the provisions of this Act, the Central Government may, by order published in the Official Gazette, make such provisions, not inconsistent with the provisions of this Act as appear to it to be necessary or expedient for removing the difficulty:

Provided that no such order shall be made under this section after the expiry of three years from the commencement of this Act.

41.

Transitional provisions.-

(1)

The Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), the Majlis-i-Maliyat (Finance Committee) and Faculties of the University shall, as soon as may be, after the commencement of this Act, be constituted in accordance with the provisions of this Act and until so constituted, the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), the Majlis-i-Maliyat (Finance Committee) and Faculties of the Jamia Millia Islamia functioning immediately before such commencement, shall continue to exercise all the powers and perform all the functions of such authority under this Act.

(2)

The Amir-i-Jamia (Chancellor), the Shaikh-ul-Jamia (Vice-Chancellor), the Musajjil (Registrar), Deans of Faculties, Heads of the Departments, Principals of Institutions, other officers and employees of the Jamia Millia Islamia holding office immediately before the commencement of this Act, shall, on and from such commencement, continue to hold their respective offices by the same tenure and upon the same terms and conditions as they held it immediately before such commencement.

(3)

Anything done or any action taken or any degree or other academic distinction conferred by the Jamia Millia Islamia before the commencement of this Act shall, notwithstanding any change made by this Act in the constitution of the

Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), the Majlis-i-Maliyat (Finance Committee), Faculties and other officers be valid, as if such thing was done, action taken, or degree or academic distinction conferred under this Act.

The Schedule

(See section 24)

The Statutes of the University

1. The Amir-I-Jamia (Chancellor):

(1)
The Amir-i-Jamia (Chancellor) shall be elected by the Anjuman (Court) by a simple majority.

(2)
The Amir-i-Jamia (Chancellor) shall hold office for a term of five years, and shall be eligible for re-election.

(3)
The Amir-i-Jamia (Chancellor) shall, if present, preside over the meetings of the Anjuman (Court) and the Convocation of the University.

2. The Shaikh-ul-Jamia (Vice-Chancellor):

(1)
The Shaikh-ul-Jamia (Vice-Chancellor) shall be appointed by the Visitor from a panel of at least three persons recommended by a Committee consisting of three persons: two to be nominated by the Majlis-i-Muntazimah (Executive Council) and one, who shall be the Chairman of the Committee to be nominated by the Visitor:

Provided that no member of the above Committee shall be connected with the University:

Provided further that if the Visitor does not approve of any of the persons so recommended, he may call for fresh recommendations.

(2)
The Shaikh-ul-Jamia (Vice-Chancellor) shall be a whole-time salaried officer of the University.

(3)
The Shaikh-ul-Jamia (Vice-Chancellor) shall hold office for a term of five years from the date on which he enters upon his office and shall be eligible for re-appointment for not more than another term:

Provided that notwithstanding the expiry of the said period of five years, he shall continue in office until his successor is appointed and enters upon his office.

(4)
Notwithstanding anything contained in clause (3), a person appointed as Shaikh-ul-Jamia (Vice-Chancellor) shall, if he completes the age of sixty-five years during the term of his office, retire from office.

(5)
The emoluments and other terms and conditions of service of the Shaikh-ul-Jamia (Vice-Chancellor) shall be such as may be prescribed by the Ordinances.

(6)
If the office of the Shaikh-ul-Jamia (Vice-Chancellor) becomes vacant due to his death, resignation or otherwise or if he is unable to perform his duties owing to absence, illness or any other cause, the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall discharge the duties of the Shaikh-ul-Jamia (Vice-Chancellor) and will be designated as Qaim Maqam Shaikh-ul-Jamia (officiating Vice-Chancellor) until a new Shaikh-ul-Jamia (Vice-Chancellor) assumes office or the existing Shaikh-ul-Jamia (Vice-Chancellor) attends to the duties of his office, as the case may be:

Provided that if the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) is not available, the senior-most Professor shall discharge the duties of the Shaikh-ul-Jamia (Vice-Chancellor) until a new Shaikh-ul-Jamia (Vice-Chancellor) or the Shaikh-ul-Jamia (Vice-Chancellor), as the case may be, assumes office.

3. Powers And Duties Of The Shaikh-UI-Jamia (Vice-Chancellor):

(1)
The Shaikh-ul-Jamia (Vice-Chancellor) shall be the ex officio Chairman of the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), the Majlis-i-Maliyat (Finance Committee) and the Planning Board and shall, in the absence of the Amir-i-Jamia (Chancellor) preside at the meeting of the Anjuman (Court) and the Convocation held for conferring degrees and shall be entitled to be present at, and to address, any meeting of any authority or other body of the University, but shall not be entitled to vote thereat unless he is a member of such authority or body.

(2)

It shall be the duty of the Shaikh-ul-Jamia (Vice-Chancellor) to see that the Act, the Statutes, the Ordinances and the Regulations are duly observed and he shall have all powers necessary to ensure such observance.

(3)

The Shaikh-ul-Jamia (Vice-Chancellor) shall have the power to convene or cause to be convened meetings of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), and the Majlis-i-Maliyat (Finance Committee) and the Planning Board.

4. Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor):

(1)

The Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall be appointed by the Majlis-i-Muntazimah (Executive Council) on the recommendation of the Shaikh-ul-Jamia (Vice-Chancellor) on such terms and conditions as may be laid down in the Ordinances:

Provided that where the recommendation of the Shaikh-ul-Jamia (Vice-Chancellor) is not accepted by the Majlis-i-Muntazimah (Executive Council), the matter shall be referred to the Visitor who may either appoint the person recommended by the Shaikh-ul-Jamia (Vice-Chancellor) or ask the Shaikh-ul-Jamia (Vice-Chancellor) to recommend another person to the Majlis-i-Muntazimah (Executive Council):

Provided further that the Majlis-i-Muntazimah (Executive Council) may, on the recommendation of the Shaikh-ul-Jamia (Vice-Chancellor) appoint a Professor to discharge the duties of the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) in addition to his own duties as a Professor.

(2)

The term of office of the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall be such as may be decided by the Majlis-i-Muntazimah (Executive Council), but it shall not in any case exceed five years or until the expiration of the term of office of the Shaikh-ul-Jamia (Vice-Chancellor) whichever is earlier, and he shall be eligible for re-appointment:

Provided that the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall retire on attaining the age of sixty-five years:

Provided further that the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall, while discharging the duties of the Shaikh-ul-Jamia (Vice-Chancellor) under clause (6) of Statute 2, continue in office notwithstanding the expiration of the term of office until a new Shaikh-ul-Jamia (Vice-Chancellor), or the Shaikh-ul-Jamia (Vice-Chancellor), as the case may be, assumes office.

(3)

The emoluments and other terms and conditions of service of the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall be such as may be prescribed by the Ordinances.

(4)

The Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall assist the Shaikh-ul-Jamia (Vice-Chancellor) in respect of such matters as may be specified by the Shaikh-ul-Jamia (Vice-Chancellor) from time to time in this behalf and shall also exercise such powers and perform such duties as may be assigned or delegated to him by the Shaikh-ul-Jamia (Vice-Chancellor).

5. The Musajjil (Registrar):

(1)

The Musajjil (Registrar) shall be a whole-time salaried employee of the University and shall be appointed on the recommendation of the Selection Committee constituted for the purpose under Statute 25.

(2)

The emoluments and other terms and conditions of service of the Musajjil (Registrar) shall be such as may be prescribed by the Ordinances:

Provided that the Musajjil (Registrar) shall retire on attaining the age of sixty years.

(3)

When the office of the Musajjil (Registrar) is vacant or when the Musajjil (Registrar) is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Shaikh-ul-Jamia (Vice-Chancellor) may appoint for the purpose.

(4)

(i)

The Musajjil (Registrar) shall have power to take disciplinary action against such of the employees of the University,

excluding teachers and academic staff, as may be specified in the orders of the Majlis-i-Muntazimah (Executive Council) and to suspend them pending inquiry, to administer warnings to them or to impose on them the penalty of censure or the withholding of increment:

Provided that no such penalty shall be imposed unless the person concerned has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(ii)

An appeal shall lie to the Shaikh-ul-Jamia (Vice-Chancellor) against any order of the Musajjil (Registrar) imposing any of the penalties specified in sub-clause (i).

(iii)

In a case where the inquiry discloses that a punishment beyond the powers of the Musajjil (Registrar) is called for, the Musajjil (Registrar) shall, upon conclusion of the inquiry, make a report to the Shaikh-ul-Jamia (Vice-Chancellor) along with his recommendations:

Provided that an appeal shall lie to the Majlis-i-Muntazimah (Executive Council) against an order of the Shaikh-ul-Jamia (Vice-Chancellor) imposing any penalty.

(5)

The Musajjil (Registrar) shall be ex officio Secretary of the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council) and the Faculties, but shall not be deemed to be a member of any of these authorities. He shall be ex officio Member-Secretary of the Anjuman (Court).

(6)

It shall be the duty of the Musajjil (Registrar):

(i)

to be the custodian of the records, the common seal and such other property of the University as the Majlis-i-Muntazimah (Executive Council), shall commit to his charge;

(ii)

to issue all notices convening meetings of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council) and Faculties, the Boards of Studies, the Boards of Examiners and of any Committee appointed by the authorities of the University;

(iii)

to keep the minutes of all the meetings of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council), Faculties and of any Committee appointed by the authorities of the University;

(iv)

to conduct the official correspondence of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council) and the Majlis-i-Talimi (Academic Council);

(v)

to arrange for and superintend the examinations of the University in accordance with the manner prescribed by the Ordinances;

(vi)

to supply to the Visitor, copies of the agenda of the meetings of the authorities of the University as soon as they are issued and the minutes of such meetings;

(vii)

to represent the University in suits or proceedings by or against the University, sign powers-of-attorney and verify pleadings or depute his representative for the purpose; and

(viii)

to perform such other duties as may be specified in these Statutes, or prescribed by the Ordinances or the Regulations or as may be required, from time to time, by the Majlis-i-Muntazimah (Executive Council) or the Shaikh-ul-Jamia (Vice-Chancellor).

6. Finance Officer:

(1)

The Finance Officer shall be a whole-time salaried employee of the University and shall be appointed on the recommendation of the Selection Committee constituted for the purpose under Statute 25 on such terms and conditions as may be prescribed by the Ordinances:

Provided that a person appointed as a Finance Officer shall retire from office when he attains the age of sixty years.

(2)

When the office of the Finance Officer is vacant or when the Finance Officer is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Shaikh-ul-Jamia (Vice-Chancellor) may appoint for the purpose.

(3)

The Finance Officer shall be the ex officio Secretary of the Majlis-i-Maliyat (Finance Committee), but shall not be deemed to be a member of such Committee.

(4)

The Finance Officer shall advise the University as regards its financial policy and perform such other financial functions as may be assigned to him by the Majlis-i-Muntazimah (Executive Council) or as may be prescribed by these Statutes or the Ordinances.

(5)

Subject to the control of the Majlis-i-Muntazimah (Executive Council), the Finance Officer shall-

(i)

hold and manage the property and investments including trust and endowed property;

(ii)

ensure that the limits fixed by the Majlis-i-Muntazimah (Executive Council) for recurring and non-recurring expenditure for a year are not exceeded and that all moneys are expended on the purposes for which they are granted or allotted;

(iii)

be responsible for the preparation of annual accounts and the budget of the University for the next financial year and for their presentation to the Majlis-i-Muntazimah (Executive Council);

(iv)

keep a constant watch on the state of the cash and bank balances and on the state of investment;

(v)

watch the progress of the collection of revenue and advise on the methods of collection employed;

(vi)

have the accounts of the University regularly audited by an internal audit party;

(vii)

ensure that the registers of buildings, land, furniture and equipment are maintained up-to-date and that the stock-checking is conducted, of equipment and other consumable materials in all offices, Centres, Institutions and Schools maintained by the University;

(viii)

call for explanation for unauthorised expenditure and for other financial irregularities and suggest disciplinary action against persons at fault; and

(ix)

call for from any office, Institution, Centre, Department or School, under the University, any information or return that he may consider necessary for the performance of his duties.

(6)

The receipt issued by the Finance Officer or by the person or persons duly authorised in this behalf by the Majlis-i-Muntazimah (Executive Council) for any money payable to the University shall be sufficient discharge for payment of such money.

7. Deans of Faculties:

(1)

Each Faculty shall have a Dean who shall be appointed by the Shaikh-ul-Jamia (Vice-Chancellor) from amongst the Professors in the Faculty for a period of three years by rotation:

Provided that if at any time there is no Professor in a Faculty, the Shaikh-ul-Jamia (Vice-Chancellor) may appoint a Reader as Dean from amongst the Readers. However, if a Professor is appointed in the Faculty during the period of the Reader as Dean, his tenure will cease from the date of the appointment of a Professor who shall then be the Dean.

(2)

A Dean on attaining the age of sixty years shall cease to hold office as such.

(3)

A Dean may resign his office at any time during his tenure, and a Professor may decline the offer of appointment as the Dean of a Faculty.

(4)

When the office of the Dean is vacant or when the Dean is, by reason of illness, absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Shaikh-ul-Jamia (Vice-Chancellor) may appoint for the purpose.

(5)

The Dean shall be the Head of the Faculty and shall be responsible for the conduct and maintenance of the standards of teaching and research in the Faculty. He shall have such other functions as may be prescribed by the Ordinances.

(6)

The Dean shall have the right to be present and to speak at any meeting of the Board of Studies or Committee of the Faculty, as the case may be, but not the right to vote thereat unless he is a member thereof.

8. Heads Of Department:

(1)

Each Department shall have a Head of the Department who shall be a Professor and whose duties and functions and terms and conditions of appointment shall be prescribed by the Ordinances:

Provided that if there are more than one Professors in any Department the Head of the Department shall be appointed in accordance with the provisions made in respect thereof by the Ordinances:

Provided further that in a Department where there is no Professor, a Reader may be appointed as the Head of the Department in accordance with the provision made in respect thereof by the Ordinances:

Provided also that if there is no Professor or Reader in a Department, Dean of the Faculty concerned shall act as Head of the Department.

(2)

It shall be open to a Professor or a Reader to decline the offer of appointment as the Head of the Department.

(3)

A person appointed as the Head of the Department shall hold office as such for a period of three years and shall be eligible for re-appointment.

(4)

A Head of the Department may resign his office at any time during his tenure of office.

9. Dean of Students' Welfare:

(1)

Every Dean of Students' Welfare shall be appointed from amongst the teachers of the University, not below the rank of a Reader by the Majlis-i-Muntazimah (Executive Council) on the recommendation of the Shaikh-ul-Jamia (Vice-Chancellor).

(2)

Every Dean appointed under clause (1) shall be a whole-time officer and shall hold office for a term of three years and shall be eligible for re-appointment:

Provided that the Majlis-i-Muntazimah (Executive Council) may, if it is considered necessary, appoint on the recommendation of the Shaikh-ul-Jamia (Vice-Chancellor) a teacher, not below the rank of a Reader to discharge duties of the Dean of Students' Welfare in addition to his duties and in such a case the Majlis-i-Muntazimah (Executive Council) may sanction a suitable allowance to be paid to him.

(3)

A person who is appointed as the Dean of Students' Welfare shall continue to hold his lien on his substantive post and shall be eligible to all the benefits that would have otherwise accrued to him but for his appointment as Dean of Students' Welfare.

(4)

When the office of the Dean of Students' Welfare is vacant or when the Dean of Students' Welfare is, by reason of illness or absence or any other cause, unable to perform the duties of his office, the duties of the office shall be performed by such person as the Shaikh-ul-Jamia (Vice-Chancellor) may appoint for the purpose.

(5)

The duties and powers of the Dean of Students' Welfare shall be prescribed by the Ordinances.

10. LIBRARIAN:

(1)

The Librarian shall be appointed by the Majlis-i-Muntazimah (Executive Council) on the recommendation of a Selection Committee constituted for the purpose under Statute 25 and shall be a whole time officer of the University.

(2)

The Librarian shall exercise such powers and perform such duties as may be assigned to him by the Majlis-i-Muntazimah (Executive Council).

11. Anjuman (Court):

(1)

The Court shall consist of the following persons, namely:-

Ex officio Members:

(i)

Amir-i-Jamia (Chancellor).

(ii)

Shaikh-ul-Jamia (Vice-Chancellor).

(iii)

Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor).

(iv)

All Deans of Faculties.

(v)

Dean of Students' Welfare.

(vi)

Musajjil (Registrar).

(vii)

Finance Officer.

(viii)

Librarian.

(ix)

Ten Heads of Departments by rotation according to seniority.

(x)

Two Heads of other Institutions.

Life Members:

(xi)

Persons, who signed the pledge of 20 years of service to the Jamia.

Representatives of Teachers:

(xii)

Two Professors who are not Heads of Departments of Studies, by rotation according to seniority.

(xiii)

Two Readers by rotation according to seniority to be appointed by the Shaikh-ul-Jamia (Vice-Chancellor).

(xiv)

Two Lecturers by rotation according to seniority, to be appointed by the Shaikh-ul-Jamia (Vice-Chancellor).

Representatives of Non-teaching staff:

(xv)

Three representatives of non-teaching staff according to seniority by rotation.

Nominated Members:

(xvi)

Eight persons to be nominated by the Visitor and two persons to be nominated by the Amir-i-Jamia (Chancellor).

Co-opted Members:

(xvii)

Six persons representing learned professions and special interests including representatives of industry, commerce,

trade unions, banking and agriculture to be co-opted by the Anjuman (Court).

Representatives of Legislatures:

(xviii)

Three members of Parliament, two to be nominated by the Speaker of the Lok Sabha and one by the Chairman of the Rajya Sabha.

(xix)

One representative of Delhi Administration to be nominated by the Union territory administration.

(xx)

The Chairman of the Central Board of Secondary Education, Delhi.

(2)

All members of the Anjuman (Court) other than ex officio members, shall hold office for a term of three years.

(3)

An ex officio member shall cease to be a member of the Anjuman (Court) as soon as he vacates the office by virtue of which he is such a member.

12. Meetings Of The Anjuman (Court):

(1)

An annual meeting of the Anjuman (Court) shall be held on a date to be fixed by the Majlis-i-Muntazimah (Executive Council) unless some other date has been fixed by the Anjuman (Court) in respect of any year.

(2)

At an annual meeting of the Anjuman (Court), a report on the working of the University during the previous year, together with a statement of the receipts and expenditure, the balance-sheet as audited and the financial estimates for the next year shall be presented. 19

(3)

A copy of the statement of receipts and expenditure, the balance-sheet and the financial estimates referred to in clause (2) shall be sent to every member of the Anjuman (Court) at least seven days before the date of the annual meeting.

(4)

One-fourth of the members of the Anjuman (Court) shall form the quorum for a meeting of the Anjuman (Court).

(5)

Special meetings of the Anjuman (Court) may be convened by the Majlis-i-Muntazimah (Executive Council) or the Shaikh-ul-Jamia (Vice-Chancellor) or if there is no Shaikh-ul-Jamia (Vice-Chancellor), by the Naib Shaikh-ul-Jamia (Pro-Vice-Chairman), or, if there is no Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) by the Musajjil (Registrar).

13. MAJLIS-I-MUNTAZIMAH (EXECUTIVE COUNCIL):

(1)

The Majlis-i-Muntazimah (Executive Council) shall consist of the following members, namely:-

(i)

Shaikh-ul-Jamia (Vice-Chancellor);

(ii)

Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor);

(iii)

two Deans of Faculties by rotation according to seniority;

(iv)

Dean of Students' Welfare;

(v)

one of the Directors of Boards of Management, Centres of the University, by rotation according to seniority;

(vi)

three teachers-one each from amongst Professors, Readers and Lecturers of the University to be appointed by the Shaikh-ul-Jamia (Vice-Chancellor) by rotation according to seniority;

(vii)

four persons to be nominated by the Visitor;

(viii)

two persons from amongst the Life Members under Statute 11 (1) (xi) chosen by the Anjuman (Court) by rotation.

(2)
Five members shall form quorum for a meeting of the Majlis-i-Muntazimah (Executive Council).

(3)
All the members of the Majlis-i-Muntazimah (Executive Council) other than the ex officio members shall hold office for a period of three years.

14. Powers And Functions Of Majlis-I-Muntazimah (Executive Council):

(1)
The Majlis-i-Muntazimah (Executive Council) shall have the management and administration of the revenue and property of the University and the conduct of all administrative affairs of the University not otherwise provided for.

(2)
Subject to the provisions of the Act, the Statutes and the Ordinances, the Majlis-i-Muntazimah (Executive Council) shall, in addition to all other powers vested in it, have the following powers, namely:-

(i)
to create teaching and academic posts to determine the number and emoluments of such posts and to define the duties and conditions of service of Professors, Readers, Lecturers and other academic staff and Principals of Institutions and Schools:

Provided that no action shall be taken by the Majlis-i-Muntazimah (Executive Council) in respect of the number, qualifications and the emoluments of teachers and academic staff otherwise than after consideration of the recommendation of the Majlis-i-Talimi (Academic Council);

(ii)
to appoint such Professors, Readers, Lecturers and other academic staff, as may be necessary and Principals of Institutions on the recommendations of the Selection Committee constituted for the purpose under Statute 25 and to fill up temporary vacancies therein;

(iii)
to create administrative, ministerial and other necessary posts and to make appointments thereto in the manner prescribed by the Ordinances;

(iv)
to grant leave of absence to any officer of the University other than the Amir-i-Jamia, (Chancellor), and the Shaikh-ul-Jamia (Vice-Chancellor), and to make necessary arrangements for the discharge of the functions of such officer during his absence;

(v)
to regulate and enforce discipline among members of the teaching, administrative and other staff of the University in accordance with these Statutes and the Ordinances;

(vi)
to manage and regulate the finances, accounts, investments, property, business and all other administrative affairs of the University;

(vii)
to invest any money belonging to the University, including any unapplied income, in such stocks, funds, shares or securities as it may, from time to time, think fit, or in the purchase of immovable property in India, with the like power of varying such investments from time to time;

(viii)
to transfer or accept transfers of any movable or immovable property on behalf of the University;

(ix)
to provide buildings, premises, furniture and apparatus and other means needed for carrying on the work of the University;

(x)
to enter into, vary, carry out and cancel contracts on behalf of the University;

(xi)
to entertain, adjudicate upon and, if thought fit, to redress any grievances of the officers of the University, the teaching staff, other employees and the Students of the University, who may, for any reason, feel aggrieved;

(xii)

to appoint examiners and moderators and to fix their fees, emoluments and travelling and other allowances, after consulting the Majlis-i-Talimi (Academic Council);

(xiii)

to maintain a register of donors to the University;

(xiv)

to select a common seal for the University and provide for the custody and use of such seal;

(xv)

to make such special arrangements as may be necessary for the residence and discipline of women students;

(xvi)

to delegate any of its powers to the Shaikh-ul-Jamia (Vice-Chancellor), the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor), the Musajil (Registrar) or the Finance officer or such other employee or authority of the University or to a Committee appointed by it, as it may deem fit;

(xvii)

to institute fellowships, scholarships, studentships, medals and prizes; and

(xviii)

to exercise such other powers and perform such other duties as may be conferred or imposed on it by the Act or these Statutes.

15. Majlis-I-Talimi (Academic Council):

(1)

The Majlis-i-Talimi (Academic Council) shall consist of the following members, namely:-

(i)

Shaikh-ul-Jamia (Vice-Chancellor);

(ii)

Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor);

(iii)

Directors of Centres;

(iv)

Deans of Faculties;

(v)

Dean of Students' Welfare;

(vi)

Heads of the Departments;

(vii)

Principals and Heads of Institutions and Schools;

(viii)

Librarian;

(ix)

two Professors other than Heads of Departments, according to seniority, to be nominated by the Shaikh-ul-Jamia (Vice-Chancellor);

(x)

two Teachers of the University, at least one of whom should be a Reader, by rotation according to seniority, to be appointed by the Shaikh-ul-Jamia (Vice-Chancellor);

(xi)

three persons not in the service of the University, co-opted by the Majlis-i-Talimi (Academic Council) for their special knowledge.

(2)

One-third of the total members of the Majlis-i-Talimi (Academic Council) shall form the quorum.

(3)

All the members of the Majlis-i-Talimi (Academic Council) other than the ex officio members shall hold office for a period of three years.

16. Powers of The Majlis-I-Talimi (Academic Council):

Subject to this Act, these Statutes and the Ordinances, the Majlis-i-Talimi (Academic Council) shall, in addition to all other powers vested in it, have the following powers, namely:-

- (i) to exercise general supervision over the academic policies of the University and to give directions regarding methods of instruction, cooperative teaching among Departments and institutions, evaluation of research or improvement in academic standards;
- (ii) to bring about inter-faculty co-ordination, to establish or appoint Committees or Boards, for taking up projects on an interfaculty basis;
- (iii) to consider matters of general academic interest either at its own initiative or referred to by a Faculty, or the Majlis-i-Muntazimah (Executive Council), and to take appropriate action thereon; and
- (iv) to frame such regulations and rules consistent with these Statutes and Ordinances regarding the academic functioning of the University, discipline, residences, admissions, award of fellowships and studentships, fee concessions, corporate life and attendance.

17. Faculties and Departments:

The University shall have the following Faculties, namely:-

- (i) the Faculty of Humanities and Languages;
- (ii) the Faculty of Social Sciences;
- (iii) the Faculty of Natural Sciences;
- (iv) the Faculty of Education;
- (v) the Faculty of Engineering and Technology;
- (vi) the Faculty of Law; and
- (vii) such other Faculties as may be prescribed by these Statutes.

18. Constitution of Faculties:

- (1) Each Faculty, other than the Faculty of Engineering and Technology, shall consist of the following members, namely:-
 - (i) Dean of the Faculty who shall be the Chairman;
 - (ii) all Professors in the Faculty;
 - (iii) all Heads of Departments assigned to the Faculty who are not Professors;
 - (iv) one Reader from each Department by rotation according to seniority;
 - (v) two Lecturers from each Department (one above ten years of service and one below ten years) by rotation according to seniority; 22
 - (vi) four persons nominated by the Majlis-i-Talimi (Academic Council) from other Faculties of the University; and
 - (vii) five persons, not in the service of the University to be co-opted by the Faculty for their special knowledge of any subject assigned to the Faculty, provided that not more than one person may be co-opted in respect of a subject assigned to a

single Department.

(2)

The Faculty of Engineering and Technology shall consist of the following members, namely:-

(i)

Dean of the Faculty, who shall be the Chairman;

(ii)

Head of the University Polytechnic;

(iii)

all Professors in the Faculty;

(iv)

one Reader and one Lecturer by rotation according to seniority from each Department in the Faculty;

(v)

not more than three Readers from the University Polytechnic;

(vi)

one Lecturer at the University Polytechnic, by rotation according to seniority;

(vii)

one person not in the service of the University, having expert knowledge of the subject or subjects concerned, to be co-opted by the Faculty for each Department; and

(viii)

three members to be nominated by the Majlis-i-Talimi (Academic Council) for their special knowledge of any subject assigned to the Faculty or of any allied branches of knowledge.

(3)

All members of a Faculty, other than the ex officio members, shall hold office for a term of three years.

(4)

The conduct of the meetings of a Faculty and the quorum required for each Faculty shall be prescribed by the Ordinances.

19. Powers and Functions of The Faculties:

In addition to the powers and functions of the Faculties prescribed under the Ordinances, they shall have power,-

(i)

to co-ordinate teaching and research activities of Departments assigned to the Faculty, and to promote and provide for inter-disciplinary teaching and research and to arrange for examination and periodical tests in subjects falling within the purview of the Faculty;

(ii)

to appoint Boards of Studies or Committees or to undertake research projects common to more than one Department;

(iii)

to approve courses of study proposed by the Departments;

(iv)

to forward to the Majlis-i-Muntazimah (Executive Council) the recommendations of the Boards of Studies or Committee for Advance Studies and Research;

(v)

to propose the draft of Ordinances for the examination for courses conducted by the Faculty;

(vi)

to recommend proposals for the creation and abolition of teaching posts; and

(vii)

to perform such other functions as the Majlis-i-Muntazimah (Executive Council) and Majlis-i-Talimi (Academic Council) may prescribe.

20. Departments:

(1)

Each Faculty shall have such Departments as may be assigned to it by the Ordinances.

(2)

No Department shall be established or abolished except by these Statutes.

(3)

The Departments in existence at the commencement of the Jamia Millia Islamia Act, 1988 and the Faculties relating thereto shall continue to function heretofore until decided otherwise by the Statutes.

(4)

Each Department shall consist of the following members, namely:-

(i)

teachers of the Department;

(ii)

persons conducting research in the Department;

(iii)

Dean of the Faculty or Deans of the Faculties;

(iv)

Honorary Professors, if any, attached to Department; and

(v)

such other persons as may be members of the Department in accordance with the provisions of the Ordinances.

(5)

Each Department shall have a Head of the Department who shall be appointed in accordance with these Statutes and shall perform such functions as may be prescribed by the Ordinances.

21. Boards Of Studies:

(1)

Each Department shall have a Board of Studies which shall consist of:-

(i)

the Head of the Department, who shall be the Chairman;

(ii)

Dean of the Faculty concerned;

(iii)

all members of the Department;

(iv)

two persons teaching allied or cognate subjects in the University to be nominated by the Majlis-i-Talimi (Academic Council); and

(v)

two experts not in the service of the University to be co-opted by the Board of Studies.

(2)

The appointment of members specified in items (iv) and (v) of sub-clause (1) shall be for a period of three years.

(3)

The functions of Board of Studies shall be,-

(i)

to recommend to the Faculty in the manner prescribed by the Ordinances:

(a)

courses of studies;

(b)

appointment of examiners for under-graduate and post-graduate courses, but excluding research degrees;

(c)

creation, abolition or upgrading of teaching posts;

(d)

field of study of each post at the time of its creation;

(e)

measures for improvement of standard of teaching and research;

(f)

subjects for research for various degrees and other requirements of research work; and

(g)

appointment of supervisors for research work;

(ii)

to allocate teaching work among the teachers;

(iii)

to consider matters of general and academic interest to the Department and of its functioning;

(iv)

to perform such other functions as may be assigned to it by the Faculty:

Provided that a Department, for reasons of its size or otherwise shall, in the interest of efficient discharge of its functions, constitute Committee and assign them responsibilities in specified areas as may be prescribed by the Ordinances.

22. Mass Communication Research Centre:

(1)

Subject to the provisions of the Act and these Statutes, the Mass Communication Research Centre will be an autonomous Centre of the University and shall organize instructions and research in the Mass Media in consonance with the objectives of the University.

(2)

There shall be a Board of Management for the Mass Communication Research Centre which shall consist of the following members, namely:-

(i)

the Chairman to be appointed by the Visitor from a panel of three persons recommended by the Majlis-i-Muntazimah (Executive Council) for a period of five years or till he attains the age of sixty-five years whichever is earlier. He shall be eligible for re-appointment;

(ii)

four eminent persons in the field of Mass Communications to be nominated from outside the University by the Majlis-i-Muntazimah (Executive Council) in consultation with the Chairman;

(iii)

a nominee of the Shaikh-ul-Jamia (Vice-Chancellor);

(iv)

two persons to be nominated by the University Grants Commission;

(v)

one except from amongst the Mass Communication Centres in other Universities to be nominated by the Majlis-i-Muntazimah (Executive Council);

(vi)

Heads of all Departments of the Centre.

(3)

The Administrative Officer of the Centre shall be the ex officio Secretary of the Board of Management, but he shall not be a member of the Board.

(4)

The terms of members other than the ex officio members shall be for a period of three years.

(5)

The Centre shall be a separate administrative unit of the University and shall enjoy administrative academics, financial and budgetary autonomy in its functions:

Provided that the Majlis-i-Muntazimah (Executive Council) may issue from time to time, such directions on all matters as it may consider necessary, for the smooth functioning of the Centre and in case the Board of Management does not agree with such directions, the matter may be referred to the Visitor whose decision thereon shall be final.

(6)

The Board shall be competent to exercise all or any of the following powers, namely:-

(i)

to appoint, from time to time, Professors, Readers, Lecturers, Librarian and such other members of the teaching staff, officers and other employees of the Centre on the recommendations of the Selection Committees constituted for the purpose and all such appointees shall be employees of the University and shall be governed by the Act, these Statutes, Ordinances and Regulations;

- (ii)
to delegate administrative, financial and other powers to such officer or officers subject to such conditions as it may deem necessary;
- (iii)
to manage and regulate the finances, accounts, business and all other administrative affairs of the Centre;
- (iv)
to institute and regulate the award of fellowships, scholarships, studentships, medals, prizes, certificates and merit certificates;
- (v)
to appoint on the recommendations of the Majlis-i-Talimi (Academic Council), Examiners, Moderators and other persons concerned with the conduct of the examinations and to fix their remuneration;
- (vi)
to entertain, adjudicate upon and redress any grievances of the officers, teaching staff or other employees of the Centre who may feel aggrieved or for any other reason;
- (vii)
to exercise such other powers and perform such other functions and discharge such other duties as may be deemed necessary to achieve the objectives of the University.

(7)
The Board of Management shall submit its annual report, in respect of all matters concerning the affairs of the Centre, to the Majlis-i-Muntazimah (Executive Council).

(8)
The annual accounts and financial estimates of the Centre shall be submitted to the Majlis-i-Maliyat (Finance Committee).

(9)
The Chairman of the Board of Management shall be an officer of the University and shall be responsible to the Majlis-i-Muntazimah (Executive Council), for the overall functioning and supervision of the Centre and shall exercise such powers and perform such duties as may be assigned to him from time to time by the Board.

(10)
The Chairman of the Board of Management shall be invited to participate in all meetings of the Majlis-i-Muntazimah (Executive Council), whenever any matter concerning the Centre is on the agenda.

(11)
The Board of Management shall make regulations for regulating the proper working and management of the Centre.

(12)
The Board of Management may constitute such bodies as it deems necessary for the functioning of the Centre and frame regulations therefor.

(13)
The Shaikh-ul-Jamia (Vice-Chancellor) shall have the privilege to attend any or all the meetings of the Board of Management of the Centre.

23. Jamia Schools:

(1)
Subject to the provisions of the Act and these Statutes, the Schools established and maintained by the University shall function as an autonomous unit with a Board of Management to manage and supervise their working:
Provided that the Majlis-i-Muntazimah (Executive Council) may issue, from time to time, such directions on all matters, as it may consider necessary, for the smooth functioning of the Schools and in case the Board of Management does not agree with such directions, the matter may be referred to the Visitor, whose decision thereon shall be final.

(2)
The Board of Management shall consist of the following members, namely:-

(i)
the Shaikh-ul-Jamia (Vice-Chancellor), who shall be the Chairman;

(ii)
The Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor);

- (iii)
the Dean, Faculty of Education;
- (iv)
the Principal, Senior Secondary School;
- (v)
the Headmaster, Middle School;
- (vi)
the Director, Nursery School;
- (vii)
the Director, Balak Mata Centres;
- (viii)
one Principal from among the Principals of the Senior Secondary Schools of Delhi, to be nominated by the Shaikh-ul-Jamia (Vice-Chancellor);
- (ix)
the Secretary, Central Board of Secondary Education, Delhi;
- (x)
the Assistant Registrar for Schools, who shall be the Secretary.

(3)
The Board of Management shall be competent to exercise the following powers, namely:-

- (i)
to appoint the members of the teaching and administrative staff on the recommendation of the Selection Committees constituted for the purpose and all such appointees shall be the employees of the University and shall be governed by the Act, these Statutes, Ordinances and Regulations;
- (ii)
to manage and regulate the finances, accounts, business and all other administrative affairs of the Schools;
- (iii)
to appoint examiners, moderators and others concerned with the conduct of examination and to fix their remuneration;
- (iv)
to institute and regulate the award of scholarships, studentships, certificates, medals and prizes; 26
- (v)
to entertain and adjudicate upon any grievances of the members of the teaching and administrative staff of the Schools;
and
- (vi)
to exercise such other powers and perform such other functions as may be deemed necessary for the smooth functioning of the Schools.

24. The Majlis-I-Maliyat (Finance Committee):

- (1)
The Majlis-i-Maliyat (Finance Committee) shall consist of the following members, namely:-
 - (i)
the Shaikh-ul-Jamia (Vice-Chancellor);
 - (ii)
the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor);
 - (iii)
two Deans of the Faculties to be nominated by the Majlis-i-Muntazimah (Executive Council);
 - (iv)
two persons to be nominated by the Majlis-i-Muntazimah (Executive Council) from amongst its members other than those in the service of the University;
 - (v)
three persons to be nominated by the Visitor.

(2)
The Finance Officer shall be the ex officio Secretary of the Committee but shall not be the member of the Committee.

(3)

The Majlis-i-Maliyat (Finance Committee) shall meet at least twice a year to examine the accounts and to scrutinise proposals for expenditure.

(4)

All the members of the Majlis-i-Maliyat (Finance Committee) other than ex officio members, shall hold office for a term of three years.

(5)

Five members of the Majlis-i-Maliyat (Finance Committee) shall form the quorum.

(6)

The Annual Accounts and the financial estimates of the University prepared by the Finance Officer shall be laid before the Majlis-i-Maliyat (Finance Committee) for consideration and comments and thereafter submitted to the Majlis-i-Muntazimah (Executive Council) for approval.

(7)

The Majlis-i-Maliyat (Finance Committee) shall fix limits for the total recurring expenditure and the total non-recurring expenditure for the year, based on the income and resources of the University (which, in the case of productive works may include the proceeds of loans) and expenditure shall not be incurred by the University in excess of the limits so fixed.

(8)

No expenditure other than that provided for in the budget shall be incurred by the University without the approval of the Majlis-i-Maliyat (Finance Committee).

25. Selection Committees:

(1)

There shall be Selection Committees for making recommendation to the Majlis-i-Muntazimah (Executive Council) for appointment to the posts of Professors, Readers, Lecturers, Librarian, Registrar, Finance Officer and Principals of Institutions maintained by the University.

(2)

The Selection Committee for appointment to the posts specified in column (1) of the Table below shall consist of the Shaikh-ul-Jamia (Vice-Chancellor), Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor), a nominee of the Visitor and the persons specified in the corresponding entry in column (2) of the said Table:

Provided that where the appointment of teacher is to be made in an Institution, the Principal of that Institution shall also be an ex officio member of the Selection Committee constituted for such appointment:

Table

1

2

Professor

(i) The Head of the Department concerned, if he is a Professor.

(ii) One Professor to be nominated by the Shaikh-ul-Jamia (Vice-Chancellor).

(iii) Three

persons not in the service of the University, nominated by the Majlis-i-Muntazimah (Executive Council) out of a panel of names recommended by the Majlis-i-Talimi (Academic Council) for their special knowledge of, or interest in, the subject with which the Professor will be concerned.

Reader/Lecturer

(i) The Head of the Department concerned.

(ii) One Professor to be nominated by the Shaikh-ul-Jamia (Vice-Chancellor).

(iii) Two

persons not in the service of the University, nominated by the Majlis-i-Muntazimah (Executive Council) out of a panel of names recommended by the Majlis-i-Talimi (Academic Council), for their special knowledge of, or interest in, the subject with which the Reader or

Lecturer will be concerned.

Musajjil (Registrar)/Finance Officer

(i) Two members of the Majlis-i-Muntazimah (Executive Council) nominated by it.

(ii) One person not connected with the University nominated by the Majlis-i-Muntazimah (Executive Council).

Librarian

(i) Two

persons not in the service of the University, who have special knowledge of the subject of Library Science/Library Administration to be nominated by the Majlis-i-Muntazimah (Executive Council).

(ii) One person, not in the service of the University, nominated by the Majlis-i-Muntazimah (Executive Council).

Principal of an Institution maintained by the University

Three persons

not in the service of the University of whom two shall be nominated by the Majlis-i-Muntazimah (Executive Council) and one by the Majlis-i-Talimi (Academic Council) for their special knowledge of, or interest in, a subject in which instruction is being provided by the Institution.

Principal, Higher Secondary School; Headmaster, Middle School; Director, Nursery School; and Director, Balak Mata Centre

(i) The Dean, Faculty of Education;

(ii) Three

persons, who are not employees of the Jamia and not members of the Majlis-i-Muntazimah or the Majlis-i-Talimi, out of whom two be nominated by the Shaikh-ul-Jamia out of a panel of 7 persons to be suggested by the Majlis-i-Talimi and one be nominated by the Majlis-i-Muntazimah.

Other Teachers

(i) The Dean, Faculty of Education;

(ii) The Head of the School concerned;

(iii) One

person, who is not engaged in teaching at the Jamia and not member of the Majlis-i-Muntazimah or the Majlis-i-Talimi, be nominated by the Shaikh-ul-Jamia out of a panel of four persons for their experience of school education and administration.

Library Staff

The

Majlis-i-Muntazimah will appoint a permanent Selection Committee for the Library Staff, other than Librarian (from time to time).

Administrative Staff

The Majlis-i-Muntazimah will appoint a permanent Selection Committee for Administrative Staff (from time to time).

(3)

The Shaikh-ul-Jamia (Vice-Chancellor) or in his absence, the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor) shall preside at the meetings of the Selection Committee.

(4)

The meetings of the Selection Committee shall be convened by the Shaikh-ul-Jamia (Vice-Chancellor) or in his absence by the Naib Shaikh-ul-Jamia (Pro-Vice-Chancellor).

(5)

The procedure to be followed by a Selection Committee in making recommendations shall be laid down in the Ordinances.

(6)

If the Majlis-i-Muntazimah (Executive Council) is unable to accept the recommendations made by the Committee, it shall record its reasons and submit the case to the Visitor for final orders.

(7)

Appointments to temporary posts shall be made in the manner indicated below:-

(i)

if the temporary vacancy is for a duration longer than one academic session, it shall be filled on the advice of the Selection Committee in accordance with the procedure laid down in the foregoing clauses;

(ii)

if the temporary vacancy is for a period less than one academic session, an appointment to such vacancy shall be made on the recommendation of a Local Selection Committee consisting of the Dean of the Faculty, the Head of the Department and a nominee of the Shaikh-ul-Jamia (Vice-Chancellor):

Provided that if the same person holds the offices of the Dean and the Head of the Department, the Selection Committee may contain two nominees of the Shaikh-ul-Jamia (Vice-Chancellor):

Provided further that in case of sudden casual vacancies of teaching posts caused by death or any other reason, the Dean, may, in consultation with the Head of the Department concerned, make a temporary appointment for a month and report to the Shaikh-ul-Jamia (Vice-Chancellor) and the Musajjil (Registrar) about such appointment.

(iii)

No teacher appointed temporarily shall, if he is not recommended by a regular Selection Committee for appointment under these Statutes, be continued in service on such temporary employment, or given a fresh appointment unless he is subsequently selected by a local Selection Committee or a regular Selection Committee, for a temporary or permanent appointment, as the case may be.

(8)

Notwithstanding anything contained in the foregoing clauses, the Majlis-i-Muntazimah (Executive Council) may invite a person of high academic distinction and professional attainment to accept a post of Professor in the University, on such terms and conditions as it deems fit, and on the person agreeing to do so, appoint him to the post.

(9)

The Majlis-i-Muntazimah (Executive Council) of the University may appoint a teacher or any other academic staff working in any other University or institution for undertaking a joint project in accordance with the manner prescribed in the Ordinances.

Note:-1. Where the appointment is being made for an inter-disciplinary project, the Head of the Project shall be deemed to be the Head of the Department concerned.

2. The Professor to be nominated shall be a Professor concerned with the specialty for which the selection is being made and that the Shaikh-ul-Jamia (Vice-Chancellor) shall consult the Head of the Department and the Dean of the Faculty before nominating the Professor.

(10)

The Majlis-i-Muntazimah (Executive Council) may appoint a person selected in accordance with the procedure laid down in the foregoing clauses for a fixed tenure on such terms and conditions as it deems fit.

26. Committees:

Any authority of the University may appoint as many Standing or Special Committees as it may deem fit, consisting of members of the authority making such appointment and of such other persons (if any) as that authority in each case may think fit; and any such Committee may deal with any subject assigned to it subject to subsequent confirmation of the authority appointing it.

27. Terms and Conditions of Service of University Teachers:

(1)

All the teachers of the University, shall, in the absence of any agreement to the contrary, be governed by the terms and conditions of service as specified in the Statutes, the Ordinances and the Regulations.

(2)

Every teacher of the University shall be appointed on a written contract, the form of which shall be prescribed by the Ordinances and a copy of the contract shall be deposited with the Musajjil (Registrar).

28. Seniority Lists:

(1)

Whenever, in accordance with these Statutes, any person is to hold an office or be a member of an authority of the University by rotation according to seniority, such seniority shall be determined according to the length of continuous

service of such person in his grade, and in accordance with such other principles as the Majlis-i-Muntazimah (Executive Council) may, from time to time, determine.

(2)

It shall be the duty of the Musajjil (Registrar) to prepare and maintain in respect of each class of persons to whom the provisions of these Statutes apply, a complete and up-to-date seniority list in accordance with the provisions of the foregoing clause.

(3)

If two or more persons have equal length of continuous service in a particular grade or the relative seniority of any person or persons is otherwise in doubt, the Musajjil (Registrar) may, on his own motion and shall at the request of any such person, submit the matter to the Majlis-i-Muntazimah (Executive Council) whose decision thereon shall be final.

29. Honorary Degrees:

(1)

The Majlis-i-Muntazimah (Executive Council) may, on the recommendation of the Majlis-i-Talimi (Academic Council) and by a resolution passed by a majority of not less than two-thirds of the members present and voting, make proposals to the Visitor for the conferment of honorary degrees:

Provided that in case of emergency, the Majlis-i-Muntazimah (Executive Council) may, on its own, make such proposals.

(2)

The Majlis-i-Muntazimah (Executive Council) may, by a resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw, with the previous sanction of the Visitor, any honorary degree conferred by the University.

30. Withdrawal of Degrees, Etc.:

The Majlis-i-Muntazimah (Executive Council) may, by a special resolution passed by a majority of not less than two-thirds of the members present and voting, withdraw any degree or academic distinction conferred on, or any certificate or diploma granted to, any person by the University for good and sufficient cause:

Provided that no such resolution shall be passed until a notice in writing has been given to that person calling upon him to show cause within such time as may be specified in the notice why such a resolution should not be passed and until his objections, if any, and any evidence he may produce in support of them, have been considered by the Majlis-i-Muntazimah (Executive Council).

31. Maintenance of Discipline Among Students of the University:

(1)

All powers relating to discipline and disciplinary action in relation to students shall vest in the Shaikh-ul-Jamia (Vice-Chancellor).

(2)

The Shaikh-ul-Jamia (Vice-Chancellor) may delegate all or any of his powers as he deems proper to any officer as he may specify in this behalf.

(3)

Without prejudice to the generality of his power relating to the maintenance of discipline and taking such action in the interest of maintaining discipline as may seem to him appropriate, the Shaikh-ul-Jamia (Vice-Chancellor) may, in the exercise of his powers, by order, direct that any student or students be expelled or rusticated, for a specified period, or be not admitted to a course or courses of study in a Department or an Institution of the University for a stated period, or be punished with fine for an amount to be specified in the order, or be debarred from taking an examination or examinations conducted by the University or a Department or an Institution for one or more years, or that the results of the student or students concerned in the examination or examinations in which he or they have appeared be cancelled.

(4)

The Chairman of the Centre, the Chairman of the Board of Management of the School, the Deans of Faculties, the Heads of Departments and the Principals of Institutions, shall have the authority to exercise all such disciplinary powers over the students in their respective Centres, Schools, Faculties, Institutions and Departments as may be necessary for the proper conduct of such Centres, Schools, Faculties, Departments and Institutions.

(5)

Without prejudice to the powers of the Shaikh-ul-Jamia (Vice-Chancellor), the detailed rules of discipline and proper conduct shall be framed by the University. The Chairman of the Centre, the Chairman of the Board of Management of

the School, Directors of Centres, Deans of Faculties and Heads of Departments and Principals of Institutions may frame such supplementary rules, as they may deem necessary for the aforesaid purposes.

(6)

At the time of admission, every student shall be required to sign a declaration to the effect that he submits himself to the disciplinary jurisdiction of the Shaikh-ul-Jamia (Vice-Chancellor) and the other authorities of the University.

32. Establishment of Institutions:

The establishment of Institutions and the abolition thereof shall be governed by these Statutes.

33. Convocation:

The Convocations of the University for the conferring of degrees or for other purposes shall be held in such manner as may be prescribed by the Ordinances.

34. Acting Chairman of Meetings:

Where no provision is made for a President or Chairman to preside over a meeting of an authority of the University or any Committee of such authority or when the President or Chairman so provided for is absent, the members present shall elect one from among themselves to preside at such meeting.

35. Resignation:

(1)

Any member, other than an ex officio member of the Anjuman (Court), the Majlis-i-Muntazimah (Executive Council), the Majlis-i-Talimi (Academic Council) or any other authority of the University or any Committee of such authority may resign by letter addressed to the Registrar, and the resignation shall take effect as soon as such letter is received by the Registrar.

(2)

Any officer of the University, whether salaried or otherwise, may resign his office by letter addressed to the Registrar: Provided that such resignation shall take effect only on the date from which the same is accepted by the authority competent to fill the vacancy.

36. Disqualifications:

(1)

A person shall be disqualified for being chosen as, and for being, a member of any of the authorities of the University-

(i)

if he is of unsound mind or is a deaf-mute;

(ii)

if he is an undischarged insolvent;

(iii)

if he has been convicted by a court of law of an offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months.

(2)

If any question arises as to whether a person is or had been subjected to any of the disqualifications mentioned in clause (1), the question shall be referred for the decision of the Visitor and his decision shall be final and no suit or other proceeding shall lie in any civil court against such decision.

37. Removal of Teachers:

(1)

Where there is an allegation of misconduct against a teacher, or a member of the academic staff, the Shaikh-ul-Jamia (Vice-Chancellor) may, if he thinks fit, by order in writing, place the teacher under suspension and shall forthwith report to the Majlis-i-Muntazimah (Executive Council) the circumstances in which the order was made:

Provided that the Majlis-i-Muntazimah (Executive Council) may, if it is of the opinion, that the circumstances of the case do not warrant the suspension of the teacher or a member of the academic staff, revoke such order.

(2)

Notwithstanding anything contained in the terms of his contract of service or of his appointment, the Majlis-i-Muntazimah (Executive Council) shall be entitled to remove a teacher or a member of the academic staff on the ground of misconduct.

(3)

Save as aforesaid, the Majlis-i-Muntazimah (Executive Council) shall not be entitled to remove a teacher or a member of

the academic staff except for good cause and after giving three months' notice in writing or on payment of three months' salary in lieu thereof.

(4)

No teacher or a member of the academic staff shall be removed under clause (2) or under clause (3) until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(5)

The removal of a teacher or a member of the academic staff shall require a two-thirds majority of the members of the Majlis-i-Muntazimah (Executive Council) present and voting.

(6)

The removal of a teacher or a member of the academic staff shall take effect from the date on which the order of removal is made:

Provided that where a teacher or a member of the academic staff is under suspension at the time of his removal, the removal shall take effect from the date on which he was placed under suspension.

(7)

Notwithstanding anything contained in the Statutes, a teacher or a member of the academic staff may resign by giving three months' notice in writing to the Majlis-i-Muntazimah (Executive Council) or on payment to the University of three months' salary in lieu thereof.

38. Removal of Employees other Than Teachers of the University:

(1)

Notwithstanding anything contained in the terms of his contract of service or of his appointment, an employee other than a teacher or a member of the academic staff, may be removed by the authority which is competent to appoint the employee-

(i)

if he is of unsound mind or is a deaf-mute;

(ii)

if he is an undischarged insolvent;

(iii)

if he has been convicted by a court of law or an offence involving moral turpitude and sentenced in respect thereof to imprisonment for not less than six months;

(iv)

if he is otherwise guilty of misconduct:

Provided that no employee shall be removed from his office unless a resolution to that effect is passed by the Majlis-i-Muntazimah (Executive Council) by a majority of two-thirds of its members present and voting.

(2)

No employee shall be removed under clause (1) until he has been given a reasonable opportunity of showing cause against the action proposed to be taken in regard to him.

(3)

Where the removal of such employee is for a reason other than that specified in sub-clause (iii) of sub-clause (iv) of clause (1), he shall be given three months' notice in writing or paid three months' salary in lieu thereof.

(4)

Notwithstanding anything contained in the Statutes, an employee, not being a teacher or a member of the academic staff, shall be entitled to resign,-

(i)

if he is a permanent employee, only after giving three months' notice in writing to the appointing authority or paying to the University three months' salary in lieu thereof;

(ii)

if he is not a permanent employee, only after giving one month's notice in writing to the appointing authority or paying to the University one month's salary in lieu thereof:

Provided that such resignation shall take effect from the date on which the resignation is accepted by the appointing authority.

39. Ordinances how Made:

(1)

The Ordinances made under sub-section (2) of section 25 of the Act may be amended, repealed or added to at any time by the Majlis-i-Muntazimah (Executive Council) in the manner specified below.

(2)

No Ordinance in respect of the matters enumerated in section 25, other than those enumerated in clause (p) of sub-section (1) thereof, shall be made by the Majlis-i-Muntazimah (Executive Council) unless a draft of such Ordinance has been proposed by the Majlis-i-Talimi (Academic Council).

(3)

The Majlis-i-Muntazimah (Executive Council) shall not have power to amend any draft of any Ordinance proposed by the Majlis-i-Talimi (Academic Council) under clause (2), but may reject the proposal or return the draft to the Majlis-i-Talimi (Academic Council) for re-consideration, either in whole or in part, together with any amendment which the Majlis-i-Muntazimah (Executive Council) may suggest.

(4)

Where the Majlis-i-Muntazimah (Executive Council) has rejected or returned the draft of an Ordinance proposed by the Majlis-i-Talimi (Academic Council), the Majlis-i-Talimi (Academic Council) may consider the question afresh and in case the original draft is reaffirmed by a majority of not less than two-thirds of the members present and voting and more than half the total number of members of the Majlis-i-Talimi (Academic Council) the draft may be sent back to the Majlis-i-Muntazimah (Executive Council) which shall either adopt it or refer it to the Visitor whose decision thereon shall be final.

(5)

Every Ordinance made by the Majlis-i-Muntazimah (Executive Council) shall come into effect immediately.

(6)

Every Ordinance made by the Majlis-i-Muntazimah (Executive Council), shall be submitted to the Visitor within two weeks from the date of its adoption. The Visitor shall have the power to direct the University within four weeks of the receipt of the Ordinance to suspend the operation of any such Ordinance and he shall, as soon as possible, inform the Majlis-i-Muntazimah (Executive Council) about his objection to the proposed Ordinance. The Visitor may, after receiving the comments of the University, either withdraw the order suspending the Ordinance or disallow the Ordinance, and his decision thereon shall be final.

40. Regulations:

(1)

The authorities of the University may make regulations consistent with the Act, the Statutes and the Ordinances for the following matters, namely:-

(i)

laying down the procedure to be observed at their meetings and the number of members required to form a quorum;

(ii)

providing for all matters which are required by the Act, the Statutes or the Ordinances to be prescribed by Regulations; and

(iii)

providing for all other matters solely concerning such authorities or Committee appointed by them and not provided for by the Act, the Statutes or the Ordinances.

(2)

Every authority of the University shall make Regulations providing for the giving of notice to the members of such authority of the dates of meetings and of the business to be considered at meetings and for the keeping of a record of the proceedings of meetings.

(3)

The Majlis-i-Muntazimah (Executive Council) may direct the amendment, in such manner as it may specify, of any Regulation made under the Statutes or the annulment of any such Regulation.

41. Delegation of Powers:

Subject to the provisions of the Act and the Statutes, any officer or authority of the University may delegate his or its powers to any other officer or authority or person under his or its respective control and subject to the condition that overall responsibility for the exercise of the powers so delegated shall continue to vest in the officer or authority

delegating such powers.

42.

Residence Condition for Membership And office:

Notwithstanding anything contained in these Statutes, no person who is not ordinarily resident in India shall be eligible to be an officer of the University or a member of any authority of the

Ship of Other Bodies:

43.

Membership Of Authorities By Virtue Of Membership Of Other Bodies:

Notwithstanding anything contained in these Statutes, a person who holds any post in the University or is a member of any Authority or body of the University in his capacity as a member of a particular authority or body or as the holder of a particular appointment shall hold office so long only as he continues to be a member of that particular authority or body or the holder of that particular appointment, as the case may be.

44.

Alumni (Old Boys) Association:

(1)

There shall be an Alumni (Old Boys') Association for the University.

(2)

No person shall be a member of the Association unless-

(i)

he has paid such subscription and satisfies such conditions as may be prescribed by the Ordinances; and

(ii)

he is a graduate of the Jamia Millia Islamia or the University.

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